

Plaintiff attaches Exhibit A and B to her moving papers, both of which are the settlement agreement.

Plaintiff alleges that she was coerced to sign the agreement but presents no evidence of coercion. In her reply, Plaintiff alleges coercion on behalf of her prior counsel but provides no evidence of coercion.

Plaintiff, again, argues that Defendants are relying on altered terms without presenting any evidence that any terms have been altered.

Finally, Plaintiff asks for relief under CCP 473(b), but makes no argument under the requirements of CCP 473(b) which requires a showing of mistake, inadvertence, surprise or excusable neglect. The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

For these reasons the motion to set aside the settlement agreement executed by Plaintiff on 11/8/2025 is denied. The request by Defendants for attorney’s fees is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2306307	JANE DOE VS STATE OF CALIFORNIA, BY AND THROUGH DEPARTMENT OF EDUCATION, A PUBLIC ENTITY	MOTION FOR PROTECTIVE ORDER
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CVRI2306307	JANE DOE VS STATE OF CALIFORNIA, BY AND THROUGH DEPARTMENT OF EDUCATION, A PUBLIC ENTITY	MOTION TO COMPEL COMPLETION OF PLAINTIFF'S DEPOSITION

Tentative Ruling:

This is a childhood sexual assault case. Plaintiff Jane Doe was a minor (at the time this matter was filed), disabled student at Defendant California School for the Deaf, Riverside (“School”), which is allegedly a component of the State Special Schools and Services Division of Defendant State of California Department of Education (“State”). Plaintiff alleges that during the 2022 and 2023 school years, she was repeatedly sexually assaulted by other students on School premises in classrooms, hallways, gymnasium and bathrooms. Plaintiff asserts that teachers and staff of the school failed